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Case Number: 25TRCV03037 Hearing Date: August 11, 2026 Dept: P

Motion to Stay Discovery and/or for a Protective Order Pending Criminal Proceedings

Moving Party: Defendants Cinelandia Maria Ferrell and Robert A. Ferrell

Responding Party: None

RULING

The court considered the moving papers. The motion is GRANTED IN PART and DENIED IN PART as follows. The request to stay discovery against Defendant Cinelandia Maria Ferrell, pending the resolution of criminal proceedings against her, is GRANTED. The request for a protective order is DENIED.

PROCEDURAL BACKGROUND

On September 5, 2025, Sisophal Tan, by and through his Successor-in-Interest, Huypheng Lao, Huypheng Lao, individually and as mother and Guardian ad Litem for minors Emily Tan and Isabella Tan, and Norah Tan (collectively, "Plaintiffs") filed a complaint against Cinelandia Maria Ferrell ("Ms. Ferrell"), Robert A. Ferrell, and DOES 1 through 100, inclusive, alleging two causes of action for (1) motor vehicle negligence and (2) damages based upon survival action pursuant to Code of Civil Procedure Section 337.34.

On June 26, 2026, Ms. Ferrell and Robert Ferrell (collectively, "Moving Defendants") filed the instant motion to stay discovery and/or for a protective order pending resolution of Ms. Ferrell's criminal proceeding. The motion is unopposed. Moving Defendants filed a Notice of Non-Opposition on August 4, 2026.

FACTUAL BACKGROUND

Plaintiffs' complaint concerns a fatal crash involving Defendants, who were operating a motor vehicle, and decedent, Plaintiff Sisophal Tan ("Decedent"). (Complaint, ¶ 15.) Decedent was married to Plaintiff Huypheng Lao, and Plaintiffs Emily Tan, Isabella Tan, and Norah Tan are the couple's children. (Complaint, ¶¶ 3-4.)

Plaintiffs allege that on the night of September 29, 2023, on the southbound Interstate 405 near Marine Avenue in Hawthorne, California, Ms. Ferrell was unlawfully driving under the influence of alcohol and crashed her Ford 150 truck into

Decedent. (Complaint, ¶¶ 14-16.) Plaintiffs allege that at the time of the crash, Decedent was standing outside his vehicle off the right shoulder of the freeway, speaking with an on-duty California Highway Patrol Officer following a prior minor traffic collision. (Complaint, ¶ 15.) Plaintiffs allege that Ms. Ferrell struck Decedent with her vehicle, crushing Decedent between Moving Defendants' vehicle and a cement barrier wall, causing Decedent to suffer from fatal blunt force trauma to his chest, arms, hands, legs, and feet. (Complaint, ¶ 17.)

LEGAL STANDARD

The Fifth Amendment of the United States Constitution "provides that no person may be compelled to be a witness against himself or herself. [Citation.]" (People v. Tate (2010) 49 Cal.4th 635, 683.) The California Constitution similarly states: "Persons may not be compelled in a criminal cause to be a witness against themselves." (Cal. Const., art. I, § 15, cl. 6.)

The right against self-incrimination "can be invoked in a civil case" (Paul Blanco's Good Car Company Auto Group v. Superior Court of Alameda County (2020) 56 Cal.App.5th 86, 105, fn. 8.)

However, that right is not absolute. (Avant! Corp. v. Superior Court (2000) 79 Cal.App.4th 876, 885 (Avant!)) ["A defendant has no absolute right not to be forced to choose between testifying in a civil matter and asserting his Fifth Amendment privilege"].) "Not only is it permissible to conduct a civil proceeding at the same time as a related criminal proceeding, even if that necessitates invocation of the Fifth Amendment privilege, but it is even permissible for the trier of fact to draw adverse inferences from the invocation of the Fifth Amendment in a civil proceeding." (Id. at pp. 885-886.)

"Courts faced with a civil defendant who is exposed to a related criminal prosecution have responded with various procedural solutions designed to fairly balance the interests of the parties [e.g., the right of plaintiff to obtain relevant facts and the defendant's right against self-incrimination] and the judicial system." (Fuller v. Superior Court (2001) 87 Cal.App.4th 299, 307 (Fuller).)

"One accommodation is to stay the civil proceeding until disposition of the related criminal prosecution." (Fuller, supra, 87 Cal.App.4th at p. 307; cf. Pacers, Inc. v. Superior Court (1984) 162 Cal.App.3d 686, 690 ["[I]t has been consistently held that when both civil and criminal proceedings arise out of the same or related transactions, an objecting party is generally entitled to a stay of discovery in the civil action until disposition of the criminal matter"].)

"Another possibility is to allow the civil defendant to invoke the privilege against self-incrimination, even if doing so may limit the defendant's ability to put on a defense." (Fuller, supra, 87 Cal.App.4th at p. 308.)

"Whatever their response to requests for accommodation of the conflicting constitutional rights of a defendant in concurrent civil and criminal proceedings, courts have consistently refrained from recognizing any Constitutional need for such accommodation." (People v. Coleman (1975) 13 Cal.3d 867, 885.)

"Rather, the alleviation of tension between constitutional rights has been treated as within the province of a court's discretion in seeking to assure the sound administration of justice." (People v. Coleman, supra, 13 Cal.3d at p. 885.)

DISCUSSION

Moving Party's Argument

Moving Defendants seek to stay discovery and/or for a protective order prohibiting parties in this action from (1) deposing Ferrell, (2) compelling production of her vehicle for inspection, and (3) compelling response to any question that implicates her right against self-incrimination under the United States and California constitutions.

They argue that this action is directly related to criminal charges that have been filed against Ms. Ferrell, and absent a stay or protective order, (1) Ms. Ferrell will be forced to choose between providing testimony in her own defense that may be incriminatory, or losing the case by asserting her constitutional rights and remaining silent, and (2) prosecutors could obtain evidence from this case without due process and use it against her in the criminal case.

Opposing Party's Argument

No opposition was filed.

Merits of the Motion

"The decision whether to stay civil proceedings in the face of a parallel criminal proceeding should be made 'in light of the particular circumstances and competing interests involved in the case.' [Citation.]" (Avant!, supra, 79 Cal.App.4th at p. 885, quoting *Keating v. Office of Thrift Supervision* (9th Cir.1995) 45 F.3d 322, 325 (Keating).)

"This means the decisionmaker should consider 'the extent to which the defendant's fifth amendment rights are implicated.' [Citation.]" (Avant!, supra, 79 Cal.App.4th at p. 885.)

The Court finds that Ferrell has established that this action implicates her Fifth Amendment right against self-incrimination. She states that she "has been criminally charged with vehicular manslaughter arising out of the Incident," and, in this action, "Plaintiffs are attempting to recover damages ... they claim to have suffered as a result of the same Incident." (Motion, p. 6:5-8.) Defense counsel testifies that one plaintiff has already propounded discovery against Ms. Ferrell, including interrogatories and requests for admission. (Motion, Declaration of Christopher Sturich, ¶ 5.) "There is presently no immunity granted to Ms. Ferrell by the prosecutors to not use the civil discovery findings against Ms. Ferrell, and on information and belief, her discovery responses may result in inferences of culpability as to Ms. Ferrell in the criminal matters." (Id. at ¶ 7.)

Nonetheless, the Court "should ... [also] consider the following factors: (1) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending civil and criminal litigation. [Citation.]" [Citation.]" (Avant!, supra, 79 Cal.App.4th at p. 885, quoting *Keating*, supra, 45 F.3d at p. 325.)

Here, those factors do not weigh against an order staying discovery against Ms. Ferrell. Specifically, there is no evidence that the first factor weighs against staying discovery as to that defendant because Plaintiffs have not filed an opposition expressing an interest in proceeding expeditiously with discovery against Ms. Ferrell or explaining the prejudice they may suffer should the Court grant the discovery stay. The second factor favors staying discovery. Moving Defendants have shown that absent a stay, Ms. Ferrell will have a heavy burden of choosing between defending in this action and waiving her right against self-incrimination. The third factor, concerning the Court's convenience and judicial efficiency, also favors a stay. Moving Defendants suggest that, absent a stay, there will be increased motion practice because Ms. Ferrell will keep asserting the privilege against self-incrimination in her discovery responses, forcing Plaintiffs to file motions to compel further responses. (Motion, p. 5:21-22 ["To date, Ms. Ferrell will be mostly objecting to any and all questions that could link her to incriminating statements, including new [discovery] questions. There are potential motions to compel from [the] Plaintiff [that has propounded discovery] ... because Ms. Ferrell will mostly object to Plaintiff's discovery requests".]) Lastly, there is no evidence that there are third parties that have an opinion regarding whether to stay discovery, or that the interests of the public goes against staying discovery. Therefore, the fourth and fifth factors do not weigh against staying discovery. Plaintiffs have not filed an opposition indicating otherwise.

Therefore, the request to stay discovery as to Ms. Ferrell is granted.

Given that ruling, it is unnecessary for the Court to issue the requested protective order prohibiting other parties from (1) deposing Ferrell, (2) compelling production of her vehicle for inspection, or (3) compelling response to any question that implicates her right against self-incrimination.

Therefore, the request for a protective order is denied.

CONCLUSION

The court considered the moving papers. The motion is GRANTED IN PART and DENIED IN PART as follows. The request to stay discovery against Defendant Cinelandia Maria Ferrell, pending the resolution of criminal proceedings against her, is GRANTED. The request for a protective order is DENIED.

Moving Defendants to give notice of ruling.